

employment. In other words, none of the key facts outlined in *Colucci* are present in Plaintiff's complaint.

Plaintiff also argues that he is not required to specifically identify the managing agent at the pleading stage, citing *Credit Managers Assn. v. Superior Court* (1978) 51 Cal.App.3d 352 and *Okun v. Superior Court* (1981) 29 Cal.3d 442. (Opp. at C. 2.) Neither of those cases deal with the pleading requirements for a punitive damages claim against a corporate defendant. In fact, neither case deals with punitive damages at all.

Leave to Amend

"Where a defendant has not had an opportunity to amend the complaint in response to a [motion to strike], leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) As the complaint does not show on its face it is incapable of amendment, the Court will **grant leave to amend** since this is the first time the Court has addressed the sufficiency of the pleadings.

Conclusion

Defendant's motion to strike is **granted**. Plaintiff is granted leave to amend. Plaintiff shall file any amended complaint within 15 days of entry of order on this motion.

15. 9:00 AM CASE NUMBER: N25-1866

CASE NAME:

***HEARING ON MINOR'S COMPROMISE PETITION TO APPROVE COMPROMISE OF DISPUTED CLAIM OF MINOR FILED ON 9-19-25 BY ELIZABETH ZARATE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Elizabeth Zarate's Petition for Approval of Compromise of Minor Yarehzy Zarate Solares (DOB 1/25/2008) ("Minor"), filed on September 19, 2025, is **granted**, as set forth below.

Background

On September 19, 2025, Petitioner Elizabeth Zarate's, parent and guardian ad litem for her son, Minor, filed the Petition through assisting counsel Thomas Goodwin., to compromise the claim that Minor had against Elizabeth Zarate Solares and Taylor Robin Bomar related to an accident that occurred on May 21, 2023 in Byron, California. In that accident, Minor sustained to his forehead and loss consciousness. Petitioner represents that Minor has received treatment at John Muir Hospital, including imaging and chiropractic treatment. He has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$15,000, of which \$12,500 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$2,500 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses. Petitioner prepared a proposed order to deposit funds into a blocked account for the

benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 19, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-01038

CASE NAME: DELVAN KITCHING VS. CARYN CASS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: KITCHING, DELVAN

TENTATIVE RULING:

Summary

The following discovery motion is scheduled to be heard on by the Court on January 14, 2026 at 9:00 a.m. in Department 16:

1. Plaintiff Delvan Kitching's ("Plaintiff's") Motion to Compel Further and Amended Responses to Request for Production of Documents, Set One and for Sanctions from Defendant Cary Cas ("Defendant");

The Court also has scheduled hearings on the following discovery motions in Department 16 on January 21, 2026 at 8 2026 at 9:00 a.m.:

2. Plaintiff's Motion to Compel Further and Amended Responses to Form Interrogatories, Set One and for sanctions against Defendant.
3. Plaintiff's Motion to Compel Plaintiff's Motion to Compel Further and Amended Responses to Request for Admissions, Set One and for Sanctions against Defendant.
4. Plaintiff Motion to Compel Further and Amended Responses Special Interrogatories, Set One, and for Sanctions against Defendant.

The Court **vacates** all four (4) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

In this action, Plaintiff Delvan Kitching seeks relief from Defendant Caryn Cass for the following causes of action: breach of partnership, specific performance, damages based upon breach of express